

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No:
Date Filed:

-----X
ANDRE MOORE, TYREE DAVIS and SHAKEEMA
DAVIS,

Plaintiffs designate
KINGS COUNTY

Plaintiff,

-against-

The basis of the venue is:
Place where cause of action
arose

SUMMONS

THE CITY OF NEW YORK,

The plaintiffs reside at:
Kings County, New York

Defendant.

-----X
To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs' Attorney within twenty days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear, judgment will be taken against you by default for the relief demanded in the complaint set forth below.

Dated: Brooklyn, New York
May 10, 2018

Yours, etc.

LAW OFFICES OF WALE MOSAKU, P.C.

BY: WALE MOSAKU
Attorney for Plaintiff(s)
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

THE CITY OF NEW YORK
C/O New York City Corporation Counsel
100 Church Street
New York, N.Y. 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No:

-----X
ANDRE MOORE, TYREE DAVIS and SHAKEEMA
DAVIS,

Plaintiffs,

-against-

COMPLAINT

THE CITY OF NEW YORK,

Defendant.

-----X
ANDRE MOORE, TYREE DAVIS and SHAKEEMA DAVIS (hereinafter "plaintiffs"),
by their attorney(s) THE LAW OFFICES OF WALE MOSAKU, P.C., complaining of
the defendant THE CITY OF NEW YORK ("City"), upon information and belief, alleges
as follows:

NATURE OF THE ACTION

1. This is an action at law that sounds in the intentional tort(s) of false arrest/imprisonment and assault and battery.

THE PARTIES

2. The plaintiff ANDRE MOORE is a resident of the City of New York, who resides in Kings County, City and State of New York. Plaintiff ANDRE MOORE is an African-American male of full age.
3. The plaintiff TYREE DAVIS is a resident of the City of New York, who resides in Kings County, City and State of New York. Plaintiff TYREE DAVIS is an African-American male of full age.
4. The plaintiff SHAKEEMA DAVIS is a resident of the City of New York, who resides in Kings County, City and State of New York. Plaintiff SHAKEEMA DAVIS is an African-American female of full age.
5. At all relevant times, the defendant City of New York was/is a municipal corporation of the State of New York, and was/is the employer of certain non-party police officers, through its Police

Department, namely the New York City Police Department ("NYPD"), and the actions of the non-party police officers complained of herein were done as part of the custom, practice, usage, regulation and/or direction of the City of New York.

6. At the time of the incident complained of herein, each of the above-referenced non-party police officers were in the course of their duties. As such, the City is responsible for the above-referenced non-party police officers' actions, based upon the theory of *respondeat superior*.

SATISFACTION OF THE PROCEDURAL PREREQUISITES FOR SUIT

7. All conditions precedent to filing of this action have been complied with; on December 11, 2017, within ninety days after the claims alleged in this complaint arose, a written notice of claim, sworn to by each plaintiff and/or his/her representative, was served upon the defendant City of New York by personal delivery of the notice in duplicate, to the person designated by law as one to whom a summons issued against such party may be delivered in an action in the applicable Courts. Plaintiff Andre Moore's claim was assigned Claim No. 2017PI034297. Plaintiff Tyree Davis's claim was assigned Claim No. 2017PI034277. Plaintiff Shakeema Davis' claim was assigned Claim No. 2017PI034278.
8. At least thirty days have elapsed since the service of the above-mentioned notice(s) of claim, and adjustment or payment of the claims have been neglected or refused.
9. This action, pursuant to New York State and City Law, has been commenced within one year and ninety days after the happening of the event upon which the claim is based.

FACTUAL ALLEGATIONS

10. On or about September 22, 2017, at approximately 08:45 p.m., within the courtyard of the private premises described as 580 Sutter Avenue, Brooklyn, N.Y. ("subject location"), the plaintiffs were unlawfully and wrongfully arrested by non-party NYPD Police Officer Kevin

- Padilla (Tax # 959868) ("Padilla") and other presently unidentified non-party NYPD officers.
11. At the time of the arrest, the plaintiff Andre Moore resided in the building within which the subject location is situated.
 12. Immediately prior to the time of the arrest, the plaintiffs were socializing with a few other persons at the subject location, which is private property.
 13. That as the plaintiffs were at and within the subject location, Padilla and the other presently unidentified NYPD officers entered into the subject location and started to arrest the people who were within the subject location, including the plaintiffs.
 14. Either prior to, or at the time of their arrests, no plaintiff had committed a crime or offense.
 15. At the time of their arrests, no illegal or unlawful substances were recovered from any plaintiff.
 16. Following the plaintiffs' arrests, they were transported to the NYPD's Police Service Area 2 (which is right across the street from 580 Sutter Avenue, Brooklyn, New York) where they were processed, or otherwise fingerprinted and photographed.
 17. The plaintiffs Andre Moore and Shakeema Davis were released from custody at approximately 06:15 a.m. on September 23, 2017, with instructions to appear in Court on October 30, 2017.
 18. The plaintiffs Andre Moore and Shakeema Davis appeared in Court on October 30, 2017, at which time they were arraigned before a Judge.
 19. Upon arraignment, the plaintiffs Andre Moore and Shakeema Davis were informed that Padilla had sworn to a criminal complaint, wherein he charged said plaintiffs with the offense of Loitering [P.L. 240.35(2)], and alleged that he observed said plaintiffs "*...rolling dice and ...exchange a sum of United States currency between each other*".

20. Said allegation(s) by Padilla were completely false and untrue.
21. Upon arraignment, the criminal case against the plaintiffs Andre Moore and Shakeema Davis were adjourned in contemplation of dismissal.
22. The plaintiff Tyree Davis was subsequently transported to "Central Booking" situated within the Kings County Criminal Courthouse located at 120 Schermerhorn Street, Brooklyn, New York.
23. Upon arraignment, the plaintiffs Tyree Davis was informed that Padilla had sworn to a criminal complaint, wherein he charged said plaintiff with the offense of Loitering [P.L. 240.35(2)], and alleged that he observed the plaintiffs "...rolling dice and ...exchange a sum of United States currency between each other".
24. Said allegation(s) by Padilla were completely false and untrue.
25. Upon arraignment on September 23, 2017, the criminal case the plaintiff Tyree Davis was adjourned in contemplation of dismissal.
26. Each plaintiff was subjected to assault and battery by the defendant and other presently unidentified officers, having been placed in handcuffs for absolutely no reason by said officers.

CAUSE(S) OF ACTION ON BEHALF OF EACH PLAINTIFF: FALSE ARREST AND FALSE IMPRISONMENT UNDER NEW YORK STATE LAW

27. By this reference, each plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 26 of this complaint as though fully set forth herein.
28. The above-described respective arrest, detention and imprisonment of each plaintiff by Padilla and the other non party police officers were without just or probable cause, and without any warrant or legal process directing or authorizing each plaintiff's arrest or subsequent detention.
29. As a result of each plaintiff's above-described false arrest and detention by Padilla and the other non party police officers, each plaintiff has been caused to suffer humiliation, great mental and

physical anguish, embarrassment and scorn among those who know him, was prevented from attending to his necessary affairs, and has been caused to incur legal expenses, and has been otherwise damaged in his character and reputation.

30. Padilla and the other non party police officers were at all material times acting within the scope of their employment, and as such, the defendant City is vicariously liable for their unlawful acts towards each plaintiff as described above.

31. Consequently, each plaintiff has been damaged and hereby demands compensatory damages in an amount to be proven at trial against the defendant.

CAUSE OF ACTION ON BEHALF OF EACH PLAINTIFF: ASSAULT AND BATTERY

32. Each plaintiff repeats and realleges paragraphs 1 through 31 as if each paragraph is repeated verbatim herein.

33. As set forth above, Padilla and the other non-party NYPD officers assaulted each plaintiff, battered each plaintiff, and subjected each plaintiff to excessive force and summary punishment.

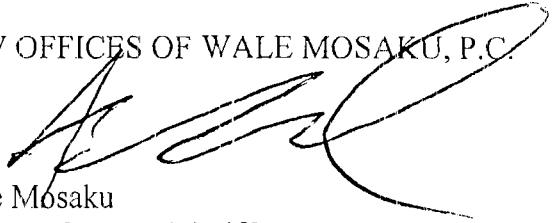
34. Consequently, each plaintiff has been damaged and hereby demands compensatory damages in an amount to be proven at trial.

35. Padilla and the other non-party NYPD officers were at all material times acting within the scope of their employment, and as such, the defendant City is vicariously liable for said officers' acts as described above.

WHEREFORE, each plaintiff prays for judgment against the defendant, as follows: for compensatory damages in an amount to be proven at trial; for costs and expenses of suit herein, including his/her reasonable attorney's fees; for pre-judgment and post-judgment interest; all in a sum of money that exceeds the jurisdiction of all lower Courts, and for such other and further relief as this court deems just and appropriate.

Dated: Brooklyn, New York
May 10, 2018

LAW OFFICES OF WALE MOSAKU, P.C.

By: 

Wale Mosaku
Attorney for the Plaintiffs
25 Bond Street, 3rd Floor
Brooklyn, N.Y. 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No:

-----X
ANDRE MOORE, TYREE DAVIS and SHAKEEMA
DAVIS,

Plaintiff,

-against-

ATTORNEY
CERTIFICATION
PURSUANT TO 22 NYCRR
Part 130-1.1(c)

THE CITY OF NEW YORK,

Defendant,

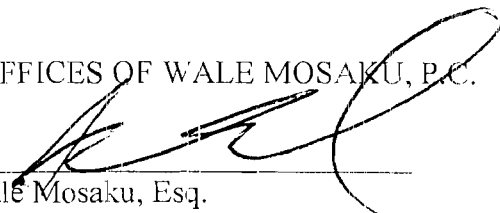
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The undersigned attorney does hereby certify:

That I am the attorney for the plaintiff and duly admitted to practice law before the
Courts of the State of New York. I do hereby provide this signed certification pursuant to
22 NYCRR Part 130-1.1 (c), that the papers that I have served, filed or submitted to the
Court in this action are not frivolous.

Dated: Brooklyn, New York
May 10, 2018

LAW OFFICES OF WALE MOSAKU, P.C.


BY: Wale Mosaku, Esq.
Attorney(s) for Plaintiffs
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK

COUNTY OF KINGS

Index #:

ANDRE MOORE, TYREE DAVIS and SHAKEEMA DAVIS,

Plaintiff,

-against-

THE CITY OF NEW YORK,

Defendant.

SUMMONS AND COMPLAINT

LAW OFFICES OF WALE MOSAKU, P.C.

Attorney(s) for Plaintiff(s)

25 Bond Street, 3rd Floor

Brooklyn, New York 11201

(718) 243-0994

To:

Service of a copy of the within
is hereby admitted.

Dated:..... 200_

Attorneys for Defendant(s)
